

STATE OF NEW YORK

1248--B

R. R. 202

2025-2026 Regular Sessions

IN ASSEMBLY

January 9, 2025

Introduced by M. of A. TAPIA, ZACCARO, ALVAREZ, LAVINE, DE LOS SANTOS, SIMONE, FORREST, SHIMSKY, LUCAS, CUNNINGHAM, CRUZ, SIMON, SAYEGH, EPSTEIN, BICHOTTE HERMELYN, BORES, K. BROWN, CHANG, GIGLIO, PIROZZOLO, DeSTEFANO, PHEFFER AMATO, WEPRIN, SANTABARBARA, WALSH -- read once and referred to the Committee on Consumer Affairs and Protection -- reported and referred to the Committee on Codes -- reported and referred to the Committee on Ways and Means -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Rules -- ordered to a third reading, passed by Assembly and delivered to the Senate, recalled from the Senate, vote reconsidered, bill amended, ordered reprinted, retaining its place on the special order of third reading

AN ACT to amend the general business law, in relation to prohibiting the sale of xylazine above a certain weight

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The general business law is amended by adding a new section
2 392-k to read as follows:

3 § 392-k. Sale of xylazine. 1. For purposes of this section, the term
4 "xylazine" shall mean a pharmaceutical drug used for sedation, anes-
5 thesia, muscle relaxation, and analgesia in animals such as horses,
6 cattle, and other non-human mammals.

7 2. The provisions of this section shall apply only to the sale, offer
8 for sale, delivery, or distribution of xylazine in quantities of fifty
9 grams or more per occurrence.

10 3. No corporation, partnership, limited liability company, firm,
11 online platform, or any other business entity doing business within this
12 state shall knowingly sell, offer for sale, or deliver fifty grams or
13 more of xylazine to individuals without proof of its intended use for
14 institutional, veterinary, or scientific purposes.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD02623-07-5

1 4. No corporation, partnership, limited liability company, firm,
2 online platform, or other business entity doing business within this
3 state shall knowingly sell, offer for sale, or deliver fifty grams or
4 more of xylazine to individuals under the age of twenty-one.

5 5. Any corporation, partnership, limited liability company, firm,
6 online platform, or other business entity doing business within this
7 state which knowingly sells, offers for sale, or distributes fifty grams
8 or more of xylazine, shall require and retain sales records, proof of
9 age, and proof of use from all purchasers.

10 6. Any corporation, partnership, limited liability company, firm,
11 online platform, or other business entity doing business within this
12 state that violates the provisions of this section by knowingly selling,
13 offering for sale, or delivering fifty grams or more of xylazine shall
14 be subject to a civil penalty of not more than three thousand dollars
15 for a first violation, and sixty-five hundred dollars for each subse-
16 quent violation, recoverable in an action by the attorney general of the
17 state of New York. All funds collected or received by the state from
18 civil penalties imposed under this section shall be deposited in the New
19 York state drug treatment and public education fund established pursuant
20 to section ninety-nine-jj of the state finance law.

21 § 2. This act shall take effect on the ninetieth day after it shall
22 have become a law.